

ALITO, J., dissenting

Even now, our cases do not hold that *every* provision of the Bill of Rights applies in the same way to the Federal Government and the States. A notable exception is the Grand Jury Clause of the Fifth Amendment, a provision that, like the Sixth Amendment jury-trial right, reflects the importance that the founding generation attached to juries as safeguards against oppression. In *Hurtado v. California*, 110 U. S. 516, 538 (1884), the Court held that the Grand Jury Clause does not bind the States and that they may substitute preliminary hearings at which the decision to allow a prosecution to go forward is made by a judge rather than a defendant's peers. That decision was based on reasoning that is not easy to distinguish from Justice Powell's in *Apodaca*. *Hurtado* remains good law and is critically important to the 28 States that allow a defendant to be prosecuted for a felony without a grand jury indictment.²⁸ If we took the same ap-

of its *amici* argued that, despite our decision in *District of Columbia v. Heller*, 554 U. S. 570 (2008), States and cities should be given leeway to regulate the possession of a firearm in the home for self-defense in accordance with the particular needs and desires of their citizens. 561 U. S., at 753. Although this argument did not prevail, four Justices, some now in the majority, appeared to take that view. See *id.*, at 927 (BREYER, J., joined by GINSBURG and SOTOMAYOR, JJ., dissenting) (observing that “gun violence . . . varies as between rural communities and cities” and arguing that States and cities should be free to adopt rules that meet local needs and preferences); *id.*, at 866 (Stevens, J., dissenting) (“The rights protected against state infringement by the Fourteenth Amendment’s Due Process Clause need not be identical in shape or scope to the rights protected against Federal Government infringement by the various provisions of the Bill of Rights”).

²⁸ See Ariz. Const., Art. 2, § 30; Ark. Const., Amdt. 21, § 1; Cal. Const., Art. I, § 14; Colo. Rev. Stat. § 16–5–205 (2019); Conn. Gen. Stat. § 54–46 (2017); Haw. Const., Art. I, § 10; Idaho Const., Art. I, § 8; Ill. Comp. Stat., ch. 725, § 5/111–2(a) (West 2018); Ind. Code § 35–34–1–1(a) (2019); Iowa Ct. Rule 2.5 (2020); Kan. Stat. Ann. § 22–3201 (2007); Md. Crim. Proc. Code Ann. §§ 4–102, 4–103 (2018); Mich. Comp. Laws § 767.1 (1979); Mo. Const., Art. I, § 17; Mont. Const., Art. II, § 20(1); Neb. Rev. Stat. § 29–1601 (2016); Nev. Const., Art. I, § 8; N. M. Const., Art. II, § 14; N. D. Rule Crim. Proc. 7(a) (2018–2019); Okla. Const., Art. II, § 17; Ore. Const. (amended),